



SUPERIOR COURT OF SAN MATEO COUNTY

Probate - Probate

Courtroom 2C

Hearing Date: 09/18/2026 - 09:00 AM

09/14/2026

2:44 PM

Page 8

Judge: Novak, Lisa A.

Clerk: Ortega, Alexandrina

Reporter: Conde, Wendy

Tentative Ruling:

APPEARANCE OPTIONAL

The Petition is GRANTED absent cogent objection

26-PRO-01060	Estate of William Joseph Cervenka	
Line 12	Petitioner: Cervenka, Robert (DUGGAN, KIMBERLY) Decedent: Cervenka, William Joseph Proposed Personal Representative: Cervenka, Robert	Probate of Will and Letters of Admin. w/ Will Annexed

Tentative Ruling:

NO APPEARANCE

The petition is continued for proof of service on "(1) all persons mentioned in decedent's will or any codicil..." if they are living; if the three brothers listed are deceased, that must be set forth in a declaration. [their names do not appear at item 8 in the petition] Moreover, the petition's caption does not state whether full administration under the IAEA is sought; that must be set forth in the declaration as well. Finally, the Court will require proof of handwriting from someone other than the petitioner. The next hearing is November 4, 2026 at 9:00 a.m.

26-PRO-01135	Guardianship of Anderson Jesus Monteros Vasquez	
Line 13, 14	Petitioner: Mejia y Mejia, Guadalupe Anahi (BAUTISTA, CYNTHIA) Ward: Monteros Vasquez, Anderson Jesus Proposed Guardian: Mejia y Mejia, Guadalupe Anahi	Petition for Special Immigrant Juvenile Findings Appointment of Guardian for Person of the Minor



SUPERIOR COURT OF SAN MATEO COUNTY

Probate - Probate

Courtroom 2C

Hearing Date: 09/18/2026 - 09:00 AM

09/14/2026

2:44 PM

Page 9

Judge: Novak, Lisa A.

Clerk: Ortega, Alexandrina

Reporter: Conde, Wendy

Tentative Ruling:

APPEARANCE ORDERED (Zoom not allowed)

The petition for SIJF alleges neglect by both parents. Under California law, neglect includes "... the willful or negligent failure of the parent or guardian to provide the child with adequate food, clothing, shelter, or medical treatment." Cal. Welf. & Inst. Code § 300(b)(1). Based upon the proposed ward's declaration, the Court does not find that the parents' economic constraints were either willful or negligent. They made their best efforts to provide the child with adequate food, clothing, shelter and medical treatment while he lived with them, and when a better opportunity arose with a family member in Guatemala, they encouraged the proposed ward to live with his uncle. As such, the petitions are DENIED.

26-PRO-01137	GAIL FRANCO vs. JOSE LUIS MENDEZ	
Line 15	Petitioner: FRANCO, GAIL (Pro Se) Respondent: MENDEZ, JOSE LUIS	Request for Orders to Stop Elder or Dependent Adult Abuse

Tentative Ruling:

APPEARANCE ORDERED (Zoom not allowed)

Respondent was personally served with a copy of the Notice of Hearing and the TRO. However, there is no proof of service filed showing that the following were served on Respondent:

- EA-100, Request for Elder or Dependent Adult Abuse Restraining Orders (file-stamped);
- EA-120, Response to Request for Elder or Dependent Adult Abuse Restraining Orders (blank form); and
- EA-120-INFO, How Can I Respond to a Request for Elder or Dependent Adult Abuse Restraining Orders?